

Terms and Conditions

For garments, workwear, printing, embroidery and other customisation services

BRANDED EUROPE LIMITED
trading as **Branded UK**

Branded UK has supplied customised clothing and workwear since 2001.

Important information

These terms form part of the contract between Branded Europe Limited, trading as Branded UK, and each customer. Please read them before placing an order, paying an invoice, approving artwork or asking us to begin production.

Nothing in these terms removes or reduces any right that a consumer is entitled to under applicable law. Where a provision is stated to apply only to a Business Customer, it does not apply to a Consumer.

1. Who we are

1.1 Branded Europe Limited is a company registered in England and Wales under company number 09472407. We trade as Branded UK. Our registered office is Unit 8 Red Lion Business Park, Red Lion Road, Surbiton, England, KT6 7QD. Our VAT number is GB 218 2736 09.

1.2 You can contact us at info@brandeduk.com or through www.brandeduk.com. References to "we", "us" and "our" mean Branded Europe Limited trading as Branded UK. References to "you" and "your" mean the person or organisation ordering from us.

1.3 Our business has operated under the Branded UK name since 2001. This statement describes our trading history and does not alter the incorporation date of Branded Europe Limited.

2. Definitions and application

2.1 Artwork means any logo, text, image, design, layout, name or other material supplied or approved for use. Customised Goods means goods made, decorated, altered or sourced to your requirements, including printed, embroidered, transferred, relabelled, engraved or personalised goods. Goods includes garments, workwear, promotional products and other physical items. Services includes design preparation, digitising, printing, embroidery, finishing, packing and related work.

2.2 A Consumer is an individual buying wholly or mainly outside their trade, business, craft or profession. A Business Customer is anyone buying for a trade, business, craft, profession, organisation, club, school, charity or for resale.

2.3 These terms apply to orders placed through our website, by email, telephone, purchase order or in person. If an accepted quotation, written credit agreement or signed supply agreement conflicts with these terms, the specifically agreed written term takes priority for that order.

3. Quotations, orders and the contract

3.1 A quotation is an invitation to order, not a binding offer. Unless stated otherwise, a quotation remains valid for 30 days and is subject to stock, supplier pricing and final review of the Artwork and specification.

3.2 Your order is an offer to buy. A contract is formed only when we issue written acceptance, take payment and confirm acceptance, or begin work at your request, whichever happens first. An automated acknowledgement does not by itself mean that an order has been accepted.

3.3 You must check the product, colour, sizes, quantities, customisation method, positions, Artwork and delivery details before submitting an order. We may reject an order where stock is unavailable, information is incomplete, a price or description is clearly wrong, the work is unsafe or unlawful, or we reasonably cannot meet the requested specification.

3.4 Any minimum order quantity stated for a product or production method forms part of the order. Separate designs, garment colours, print colours, sizes or locations may be treated as separate production runs where this affects setup or pricing.

4. Prices and VAT

4.1 Unless expressly stated otherwise, prices exclude VAT, delivery, artwork preparation, digitising, screen setup, special packaging, duties and other third-party charges. The applicable amounts will be shown before acceptance or on our quotation or invoice.

4.2 If the VAT rate changes, we will apply the rate required by law. Any VAT relief or zero-rating depends on the legal conditions being met and on you providing accurate supporting information when requested.

4.3 We may correct an obvious pricing, calculation or description error before dispatch. If the correction increases the price after you have ordered, we will ask whether you want to proceed and will refund payments for any cancelled part.

5. Payment and credit accounts

5.1 Unless we agree credit terms in writing, full cleared payment is required before stock is ordered, Artwork is prepared or production begins. Paying a deposit authorises us to incur costs and reserve production capacity for the order.

5.2 Approved credit customers must pay each invoice by its stated due date, without set-off or deduction except where the law requires otherwise. We may reduce, suspend or withdraw credit facilities at any time where reasonably necessary, including after late payment or a material change in credit risk.

5.3 For a Business Customer, we may claim statutory interest, fixed compensation and reasonable recovery costs on late commercial payments under the Late Payment of Commercial Debts (Interest) Act 1998 and related legislation, as amended from time to time.

5.4 We may pause Artwork, purchasing, production, dispatch and further orders while any undisputed amount is overdue. A genuine invoice query must be raised promptly with enough information for us to investigate; undisputed sums remain payable.

6. Customer information and deadlines

6.1 You must provide complete and accurate contact, billing, delivery, garment, sizing and Artwork information. You are responsible for checking that the person approving an order or proof is authorised to do so.

6.2 Lead times begin only after we have received all required information, cleared payment or approved credit, available stock and final Artwork approval. Any date we give before those conditions are met is an estimate.

6.3 If you delay approval, information, payment, delivery access or another required action, we may revise the price and timetable and charge reasonable additional costs caused by the delay.

7. Artwork, intellectual property and permitted content

7.1 You confirm that you own the Artwork or have all permissions needed for us to reproduce and use it for your order. You must not supply material that infringes intellectual property, privacy or other rights, is defamatory or unlawful, promotes hatred or violence, or would reasonably expose us to legal or reputational harm.

7.2 You grant us a non-exclusive licence to use, adapt and reproduce the Artwork only as reasonably necessary to quote, prepare proofs, manufacture, quality-check and fulfil the order. We will not use your logo or completed goods for public marketing without permission.

7.3 You will reimburse us for losses, liabilities and reasonable professional costs arising from a third-party claim caused by your breach of clause 7.1. This clause does not make you responsible for changes we make without your authority or for our own negligence.

7.4 Unless agreed otherwise, production files created by us - including embroidery programs, digitised stitch files, colour separations, print-ready production files and screen data - remain our working files. A setup or digitising charge pays for preparation and production use; it does not automatically transfer ownership of those files.

7.5 We may retain order records and production files for repeat orders, but we do not guarantee permanent storage. You should keep your own master Artwork.

8. Proofs and approval

8.1 A visual proof, digital mock-up or embroidery preview is a guide to content, approximate scale and position. It is not an exact colour, texture or size reproduction of the finished Goods. Device screens and automated previews can display colours and proportions differently.

8.2 You must carefully check spelling, names, numbers, dates, layout, colours, dimensions, garment position and all other details. Written approval authorises production. Once approved, an error visible in the approved proof is your responsibility unless we produce something materially different from that proof.

8.3 We may make minor technical adjustments needed for safe and effective production, such as stitch compensation, trapping, underbase, line thickening or resizing within the approved production area. Any material design change will be shown for approval.

8.4 If you request production without a proof, or ask us to rely on a previously approved file, you accept the risk of errors that a current proof would reasonably have revealed. This does not exclude our responsibility to follow the agreed specification with reasonable care and skill.

9. Customisation methods and normal variation

9.1 Printing and embroidery are physical production processes. Reasonable trade variation may occur between a proof, sample and bulk run, and between individual items, including small differences in colour, thread shade, ink coverage, texture, stitch density, placement and dimensions.

9.2 Pantone, CMYK, RGB and thread references are not interchangeable. An exact colour match is only part of the contract where we accept that requirement in writing and the selected material and process can reasonably support it. Garment fabric, dye lot, base colour and finish can affect the result.

9.3 Logos are positioned by reference to the selected decoration area and garment construction. Seams, pockets, zips, panels and size changes can cause reasonable movement. A preview marker on the website identifies a general area, not an exact coordinate.

9.4 Fine lines, gradients, very small lettering and intricate detail may not reproduce reliably in every method. We may recommend a different size or process. If you decline that recommendation after the limitation has been explained, the resulting limitation is not a defect provided the Goods materially match the approved proof.

9.5 We choose the production process within the method purchased unless a particular process is expressly agreed. For example, a print order may be produced using DTF, DTG, screen printing, transfer or another suitable technique according to the product, quantity and Artwork.

9.6 Samples, pre-production tests and colour matches are chargeable unless we agree otherwise. A sample is recommended where exact appearance, handle, colour or placement is commercially critical.

10. Garments, sizing and care

10.1 Product images and colour names are illustrative. Supplier specifications, labels, packaging and shades may change. Size guides are approximate and can vary by brand, style and production batch. You are responsible for choosing sizes, and we recommend checking samples or current manufacturer measurements before a large order.

10.2 We may not substitute a materially different product without your agreement. If an item becomes unavailable, we will offer an alternative or refund the affected item.

10.3 You must follow garment and decoration care instructions. Damage caused by unsuitable washing, drying, ironing, chemicals, abrasion, industrial laundering not approved for the product, or use outside the product specification is not a manufacturing defect.

10.4 We do not normally accept customer-supplied garments. If we expressly agree to decorate them, this must be confirmed in writing and may be subject to a handling charge and separately agreed allocation of risk.

11. Changes and cancellation before completion

11.1 Tell us immediately if you want to change or cancel an order. A change is effective only when we confirm it in writing. We may revise the price and lead time to reflect new Artwork, stock, setup or production requirements.

11.2 Customised Goods cannot normally be cancelled once Artwork preparation, purchasing, setup or production has begun. Where cancellation is accepted, we may deduct or charge the reasonable costs already incurred and work completed. This does not limit a Consumer's statutory rights.

11.3 A Business Customer has no automatic cooling-off period. Consumer cancellation rights are explained in clause 15.

12. Delivery, collection and lead times

12.1 Delivery and completion dates are estimates unless we expressly agree in writing that a date is guaranteed. Standard lead times are measured in working days and exclude weekends, public holidays, supplier delays and time awaiting your action.

12.2 We are not responsible for delay caused by incomplete information, late approval or payment, stock shortages outside our reasonable control, carrier disruption or an event described in clause 21. We will keep you informed and take reasonable steps to reduce the effect of delay.

12.3 You must provide a complete, accessible delivery address and tell us about time, vehicle or site restrictions. If delivery fails because no authorised person is available, the address is wrong, or access is unsafe or restricted, we may charge reasonable redelivery and storage costs.

12.4 If you ask a carrier to leave Goods unattended or in a safe place, risk of loss or damage passes when the Goods are left as instructed, unless the carrier acted negligently.

12.5 We may deliver an order in instalments where reasonable. A Business Customer must pay a correctly invoiced instalment even if a separate instalment is disputed.

13. Risk and ownership

13.1 Risk in the Goods passes to you when they are delivered to the agreed address, collected by you, or handed to a carrier arranged by you.

13.2 Ownership does not pass until we receive full cleared payment for the Goods. For a Business Customer, until ownership passes you must keep the Goods identifiable, properly stored and insured, and must not remove identifying labels. This clause does not prevent an ordinary resale in the normal course of business before we notify you otherwise in writing.

14. Checking deliveries and reporting problems

14.1 Check packages and quantities as soon as reasonably possible. Photograph damaged packaging before opening it and keep the Goods and packaging while we investigate.

14.2 Business Customers must notify us in writing of visible shortage, transit damage or incorrect Goods within 3 working days after delivery, and of a hidden defect promptly after discovery. Missing that period does not remove a valid claim where the issue could not reasonably have been found earlier, but delay may limit our ability to claim against a carrier or verify the cause.

14.3 Consumers should contact us promptly, but the reporting periods in clause 14.2 do not reduce statutory consumer rights.

15. Consumer cancellation and returns

15.1 If you are a Consumer buying at a distance, you normally have 14 days after delivery to cancel an order for standard, non-customised Goods. After notifying us, you normally have a further 14 days to return them. You are responsible for the direct return cost unless the Goods are faulty, not as described or we agree otherwise.

15.2 The cancellation right does not apply to Goods made to your specification or clearly personalised, including Goods printed, embroidered or otherwise customised for you. It may also not apply to sealed hygiene items once unsealed and to completed Services where you requested early performance and acknowledged the effect on cancellation rights.

15.3 Returned standard Goods must be handled only as they would be in a shop. We may make a lawful deduction for diminished value caused by excessive handling. Subject to the law, we will refund the price and the cost of our least expensive standard outbound delivery within 14 days after receiving the Goods back or receiving evidence of return, whichever is earlier.

15.4 Nothing in this clause affects your rights where Goods are faulty, not as described or not fit for a purpose made known to us, or where Services are not performed with reasonable care and skill.

16. Business returns and remedies

16.1 A Business Customer may not return correctly supplied Goods merely because they are no longer required. Any discretionary return of plain standard Goods requires our written authorisation and may be subject to supplier restrictions, return carriage and a reasonable restocking charge disclosed before acceptance.

16.2 Customised Goods, special-order Goods, opened packs and Goods altered after delivery are not returnable unless defective or materially different from the accepted specification.

16.3 If Business Goods are defective and you comply with clause 14, we may inspect them and, at our option, repair, rework or replace the affected Goods, or refund their price. We will bear reasonable return costs for a valid defect claim. We are not responsible for a defect caused by your Artwork or specification, misuse, improper care, normal wear, unauthorised alteration or continued use after you became aware of the defect.

17. Our responsibility to Consumers

17.1 We are responsible for foreseeable loss or damage caused by our breach of contract or failure to use reasonable care and skill. Loss is foreseeable if it was an obvious consequence or was contemplated by both parties when the contract was made.

17.2 We do not exclude or limit liability where doing so would be unlawful, including liability for death or personal injury caused by negligence, fraud or fraudulent misrepresentation, defective products under applicable law, or breach of statutory consumer rights.

17.3 We supply Consumers for domestic and private use. We are not responsible under the Consumer provisions for business losses arising from commercial or resale use.

18. Our responsibility to Business Customers

18.1 Nothing in these terms limits liability for death or personal injury caused by negligence, fraud or fraudulent misrepresentation, breach of title, defective products under the Consumer Protection Act 1987, or any liability that cannot lawfully be limited.

18.2 Subject to clause 18.1, we are not liable for loss of profit, revenue, business, contracts, anticipated savings, goodwill, data, opportunity, or for indirect or consequential loss.

18.3 Subject to clause 18.1, our total aggregate liability arising from an order, whether in contract, tort including negligence, breach of statutory duty or otherwise, is limited to 100% of the amount paid or payable for that order. This cap does not reduce any express refund, repair or replacement remedy stated in these terms.

18.4 A Business Customer is responsible for checking whether Goods are suitable for the intended workplace, PPE, safety, regulatory, uniform or resale requirement. We are responsible for suitability only where the specific requirement was disclosed in writing and expressly accepted by us.

19. Confidentiality and personal information

19.1 Each party must keep the other's genuinely confidential business information confidential and use it only to perform the order, except where disclosure is required by law or to professional advisers, employees, suppliers and subcontractors who need it and are subject to appropriate duties.

19.2 We process personal information in accordance with our Privacy Policy. These terms do not replace that policy. You must ensure that any personal data included in Artwork, such as employee names, is supplied lawfully and is accurate.

20. Suspension and termination

20.1 We may suspend or end an order by written notice if you fail to pay an undisputed amount after reminder, do not provide information or approval within a reasonable time, materially breach these terms, become insolvent, or ask us to produce unlawful or infringing material.

20.2 On termination, amounts due for Goods supplied, committed stock, completed work and reasonable non-cancellable costs become payable. We will refund any balance for work we will not provide, subject to lawful deductions. Rights and obligations accrued before termination continue.

21. Events outside reasonable control

21.1 Neither party is responsible for delay or failure caused by an event beyond its reasonable control, including serious supplier failure, material shortage, transport disruption, industrial action, fire, flood, severe weather, epidemic, utility or network failure, war, terrorism, civil disorder or government action.

21.2 The affected party must notify the other where reasonably possible and take reasonable steps to reduce the impact. If delay becomes substantial, a Consumer may have statutory cancellation rights, and either party may discuss cancelling any unperformed part and refunding sums paid for it after deducting lawful costs for completed bespoke work.

22. General terms

22.1 For a Business Customer, the contract is the entire agreement for the order and replaces prior discussions about it, but nothing excludes liability for fraud or fraudulent misrepresentation. A Consumer may also rely on information that the law makes binding.

22.2 You may not transfer the contract without our written agreement. We may use suppliers and subcontractors and may transfer the contract as part of a genuine business reorganisation, provided this does not reduce a Consumer's rights.

22.3 No person other than you and us may enforce the contract under the Contracts (Rights of Third Parties) Act 1999.

22.4 If a court finds part of these terms unlawful or unenforceable, the remaining provisions continue. A delay in enforcing a right is not a waiver. Changes to an accepted order must be agreed in writing. "Writing" includes email.

23. Governing law, complaints and contact

23.1 These terms and each contract are governed by the law of England and Wales.

23.2 If you are a Business Customer, the courts of England and Wales have exclusive jurisdiction. If you are a Consumer living in another part of the United Kingdom, you may bring proceedings in the courts available to you under applicable consumer law.

23.3 Please send questions, complaints, cancellation notices and return requests to info@brandeduk.com, quoting your order or invoice number. We will aim to investigate and respond fairly and promptly.

COMPANY DETAILS	CUSTOMER CONTACT
Branded Europe Limited trading as Branded UK Company no. 09472407 VAT no. GB 218 2736 09	Unit 8 Red Lion Business Park Red Lion Road Surbiton, England KT6 7QD info@brandeduk.com

Legal review note: this document is a tailored commercial draft. Branded Europe Limited should obtain review by a solicitor before publication and whenever its sales process, payment policy or applicable law changes.